

Tentative Rulings for August 20, 2026
Department 403

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG03048 *Frank Cruz v. Mortgage Default Services, LLC* is continued to Thursday, September 17, 2026, at 3:30 p.m. in Department 403.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 403

Begin at the next page

(46)

Tentative Ruling

Re: ***Jasmine Martinez v. General Motor, LLC***
Superior Court Case No. 23CECG04927

Hearing Date: August 20, 2026 (Dept. 403)

Motion: by Defendant General Motors LLC to Strike or Tax Costs

Tentative Ruling:

To grant in part Defendant General Motors LLC's motion to tax Plaintiff Jasmine Nicole Martinez's memorandum of costs and tax costs in the amount of \$347.20.

**If oral argument is timely requested, it will be entertained on
Tuesday, August 25, 2026, at 3:30 p.m. in Department 403.**

Explanation:

A prevailing buyer in an action under the Song-Beverly Act "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

Plaintiff seeks a total of \$1,536.17 in costs. Defendant moves to tax requests for filing fees, jury fees, and electronic filing fees, which are in categories authorized by Code of Civil Procedure section 1033.5, subdivision (a). Defendant additionally challenges the request for travel costs for a court appearance and a Court Call appearance fee, which are not specifically authorized by Code of Civil Procedure section 1033.5, subdivision (a).

"[W]here the same subject matter is covered by inconsistent provisions, one of which is special and the other general, the special one...is an exception to the general statute and controls unless an intent to the contrary clearly appears." (*Warne v. Harkness* (1963) 60 Cal.2d 579, 588.) Here, Civil Code section 1794, subdivision (d) is the "special" statute that governs recoverability of costs and expenses under the Song-Beverly Act and controls over the "general" statute of Code of Civil Procedure section 1033.5.

The words "costs and expenses" in section 1794, subdivision (d), cover items not included in the detailed statutory definition of costs. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137.) In the context of a contractual agreement to pay costs and attorney fees, "costs" includes all expenditures not part of overhead and which are ordinarily billed to paying clients regardless of whether they are recoverable under section 1033.5. (*Bussey v. Affleck* (1990) 225 Cal.App.3d 1162, 1166.) A similar interpretation of "costs and expenses" seems in keeping with the legislature's intent to "provide[] injured consumers strong encouragement to seek legal redress in a situation

in which a lawsuit might not otherwise have been economically feasible." (*Murillo v. Fleetwood Enterprises, Inc.* (1998) 17 Cal.4th 985, 994.)

Filing, Motion, and Jury Fees

Defendant challenges \$150.06 associated with filing two motions to compel. The costs are allowed by statute and reasonable on their face. Defendant's evidence in support of finding the costs unreasonable is that this motion practice incurred "optional" costs. The argument is not persuasive that these costs should be disallowed.

Plaintiff paid a \$150.00 jury fee deposit (with processing fees) which is also statutorily recoverable. The fact that the case settled and no jury trial went forward does not change the nature of this expense. The cost is allowed.

Electronic Service and Filing Fees

Defendant contests \$109.81 in filing fees by Direct Legal. However, it is not clear which specific fees Defendant is referring to in order to comprise this total. Regardless, Defendant contends these costs paid to a third-party filing service should be taxed because they are a "luxury service," but offers no support showing how the requested (unspecified) costs are unreasonable. These, as well as the \$35.85 challenged electronic filing fees, are recoverable, as fees for the electronic filing or service of documents through an electronic filing service provider are allowable under section 1033.5 subdivision (a)(14) if a court requires or orders electronic filing or service of documents. Here, electronic filing is required. Defendant has not met its burden to show these fees are unreasonable. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131 ["the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party]."] [Citation.]") The motion is denied as it relates to these costs.

Other Costs

Defendant challenges \$347.20 in travel expenses associated with counsel's in-person appearance for a hearing on the Motion to Compel Requests for Production of Documents. Plaintiff submits that since the motion was granted, it would appear the motion was reasonably necessary to advance the litigation. That may be true for the motion fees; however, that does not necessarily extend to the travel expenses. While travel expenses may be recoverable under Civil Code section 1794 subdivision (d), in this case, the tentative ruling granting the motion was adopted without any appearances or oral argument by either party. (See March 13, 2025 Minute Order.) Plaintiff makes no showing that these specific travel expenses were reasonably necessary to the litigation. The court intends to tax travel costs in the amount of \$347.20.

However, the court finds that the \$72.00 Court Call appearance fee was reasonably incurred, and is recoverable under Civil Code section 1794, subdivision (d).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

Tentative Ruling

Issued By: SMC on August 18, 2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Thacker v. Anguiano**
Superior Court Case No. 23CECG02079

Hearing Date: August 20, 2026 (Dept. 403)

Motion: By Plaintiff for Entry of Default Judgment

Tentative Ruling:

To deny without prejudice.

**If oral argument is timely requested, it will be entertained on
Tuesday, August 25, 2026, at 3:30 p.m. in Department 403.**

Explanation:

A party seeking a default judgment on declarations must use a mandatory Form CIV-100, and must additionally file: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a declaration of nonmilitary status as to each defendant against whom the judgment is sought; (6) a proposed form of judgment; (7) a dismissal of all parties against whom the judgment is not sought; (8) exhibits as necessary; and (9) a request for attorney fees if applicable. (Cal. Rules of Ct., rule 3.1800(a).)

Here, no papers were filed in advance of the hearing. Applications for default judgment on declarations pursuant to Code of Civil Procedure section 585, subdivision (d) are preferred. (Fresno Superior Court Local Rules, rule 2.1.14.) In any event, the absence of the mandatory Form CIV-100 alone requires a denial.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 19, 2026.
(Judge's initials) (Date)